

Court No. - 39

Case :- WRIT - C No. - 7305 of 2017

Petitioner :- Munna Lal

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Prem Sagar Gupta

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

Sri Ankit Saran, learned counsel for the respondent-Corporation prays for and is granted ten days' time to seek instruction in the matter.

List this petition as fresh on 7 March 2017.

When the petition is listed next, the name of Sri Ankit Saran shall also be shown as counsel for the respondent in the cause list.

Order Date :- 15.2.2017

Ashish Pd.

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 39

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Petitioner :- Munna Lal

Respondent :- State Of U.P. & 2 Others

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Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

Learned counsel appearing for the respondents prays for and is granted three weeks' further time to seek instruction.

List this petition as fresh on 27 March 2017.

Order Date :- 7.3.2017

Ashish Pd.

(Dilip Gupta, J.)

(Siddhartha Varma,J.)

Court No. - 39

Case :- WRIT - C No. - 7305 of 2017

Petitioner :- Munna Lal

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Prem Sagar Gupta

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

Though it is orally submitted by learned counsel appearing for the respondents that provisional and final assessments were done but no document has been furnished.

Learned counsel for the respondent prays for and is granted one week time to place the provisional and final assessments.

Place this petition as fresh on 3 April 2017.

Order Date :- 27.3.2017

vkj

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 7305 of 2017

Petitioner :- Munna Lal

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Prem Sagar Gupta

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Ravindra Nath Kakkar, J.

Heard Shri Prem Sagar Gupta, learned counsel for the petitioner and Shri Ankit Saran, learned counsel appearing for the respondent- Corporation.

By means of this petition filed under Article 226 of the Constitution of India, the petitioner has challenged the recovery citation dated 25.10.2016 issued by respondent no.2.

Shri Ankit Saran, learned counsel appearing for the respondent no.2, on the basis of instructions, states that the petitioner was caught for committing theft of electricity and therefore, a provisional assessment was made and when no objection was filed, a final assessment was prepared and on the basis of the same, demand notice was issued.

However, on the basis of instructions, it is clear that no notice or opportunity was afforded to the petitioner to object to the provisional assessment.

This Court in **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

As the petitioner has not been afforded opportunity of hearing in the matter as is mandatorily warranted under Clause 6.8 (1)(b) of the U.P. Electricity Supply Code, 2005, and even otherwise, no order of final assessment has been passed containing satisfaction of the authority about service of provisional assessment notice as is required in law, therefore, the impugned recovery citation cannot be sustained and is liable to be set-aside.

Consequently, the writ petition is allowed. The impugned demand notice dated 25.10.2016 for recovery of electricity dues of Rs.57044/- and all consequential proceedings thereto are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. After considering the objection of the petitioner, the final assessment order will be made giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar (supra)**.

Order Date :- 3.4.2017

Anand Sri./-